

Discretionary Inoculation: A Review on DOLE's Prohibition against "No Vaccine, No Work" Policy

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On March 12, 2021, the Department of Labor and Employment (DOLE) issued Labor Advisory No. 03 Series of 2021 establishing the guidelines on the administration of COVID-19 vaccines in the workplaces. It mandates the private sectors to adopt and implement appropriate vaccination policies in with the rules and guidelines issued by the Department of Health (DOH) and the Inter-Agency Task Force (IATF)¹. However, a salient provision of said Labor Advisory is found under Section 3 which states, to wit:

"III. DISCRIMINATION OR TERMINATION

*Covered establishments and employers shall endeavor to encourage their employees to get vaccinated. However, any employee who refuses or fails to be vaccinated shall not be discriminated against in terms of tenure, promotion, training, pay, and other benefits, among others, or terminated from employment. **No vaccine, no work shall not be allowed.**"²*

Verily, there is no doubt that employers may implement a vaccination policy and procure the necessary vaccines; however, the same cannot compel its employees to be inoculated. The key to such understanding is the use of the phrase "...employers shall endeavor to encourage their employees to get vaccinated." The advisory is clear that inoculation rests upon the discretion of the employee as evidenced by the use of word "encourage."

This is further supported by another issuance of DOLE last May 1, 2021. The prominent stipulations of Labor Advisory No. 08-21³ are two-fold. First, "*All employees in the private sector, except those who are ineligible or disqualified for health reasons, are highly encouraged to get inoculated with COVID-19 vaccine.*" And second, "*Employers shall continue to urge their employees to avail of their own vaccination program, if any, or their respective local government units.*" Again, as it can be gleaned upon the cited provisions, the use of the words "*highly encouraged*" and "*urge*" clearly establishes the voluntary nature of the inoculation.

¹ Guidelines on the Administration of COVID-19 Vaccines in the Workplaces, (2021), Section II, Labor Advisory No. 03-21.

² Guidelines on the Administration of COVID-19 Vaccines in the Workplaces, (2021), Section III, Labor Advisory No. 03-21.

³ Promotion of COVID-19 Vaccination in the Private Sector, (2021), Section II, Labor Advisory No. 08-21.

However, such prohibition appears to be problematic. The implementation of the health and safety protocols by the government for over a year proves futile due to the contagious nature of COVID-19. Moreover, the virus being asymptomatic in certain people makes it more prone for transmission. Also, it keeps evolving to different strands and tends to be transmitted in various ways; making wearing of face shields and face masks mere fashion statements, rather than preventive measures. Thus, employers are given a hard time on determining what measures to be adopted given that the closest thing to a COVID-free workplace cannot be mandatorily implemented.

Another point that is important in Labor Advisory No. 03-21⁴ is the statement “... *any employee who refuses or fails to be vaccinated shall not be discriminated against in terms of tenure, promotion, training, pay, and other benefits, among others, or terminated from employment.*” Such provision guarantees the constitutional mandate of protection of the workers’ rights⁵. Likewise, the above provision seeks to prevent illegal measures that employers may resort to in compelling their employees to vaccinate. Especially acts tantamount to constructive dismissal and illegal suspension.

In *Philippine Japan Active Carbon Corporation vs. NLRC*⁶, the Court defined “Constructive Dismissal” as the quitting of an employee by reason of continued employment is rendered impossible, unreasonable or unlikely. It exists if an act of clear discrimination, insensibility, or disdain by an employer becomes so unbearable on the part of the employee that it could foreclose any choice by him except to forego his continued employment⁷. While in the case of *Nancy Montinola v. Philippine Airlines*⁸, it was held that illegally suspended employees are similar to illegally dismissed employees when their suspension was attended by bad faith or fraud, oppressive to labor, or done in a manner contrary to morals, good customs, or public policy.

Evidently, these illegal measures are prone to happen if ever an employee refuses to be vaccinated. For instance, an unvaccinated employee may be isolated from the rest who already were inoculated making it socially unhealthy for the former; or, his schedule of work may be lessened, or temporarily suspended, preventing the same from going to work out of mere suspicion of being contaminated by the virus due to his refusal to inoculate. Obviously, such actions are done in bad faith and prejudicial to an employee.

Article II Section 18 of the Constitution prescribes that “*The State affirms labor as a primary social economic force. It shall protect the rights of workers and promote their welfare.*”⁹ Likewise, Article XIII Section 3 reaffirms that “*The State shall afford full protection to labor, local and overseas, organized and unorganized, and promote full employment and equality of employment opportunities for all.*”¹⁰ Such principle is further embodied in the Labor Code

⁴ Guidelines on the Administration of COVID-19 Vaccines in the Workplaces, (2021), Section III, Labor Advisory No. 03-21.

⁵ The Constitution of the Philippines, (1987), Article II Section 18.

⁶ G. R. No. 83239, March 8, 1989.

⁷ *Gan v. Galderma Philippines, Inc.*, et al. G.R. No. 177167, January 17, 2013.

⁸ G.R. No. 198656, September 8, 2014.

⁹ The Constitution of the Philippines, (1987), Article II Section 18.

¹⁰ The Constitution of the Philippines, (1987), Article XIII Section 3.

of the Philippines¹¹ wherein such law affords the protection to labor, promotes full employment, ensures equal work opportunities regardless of sex, race or creed, regulate the relations between workers and employers, and assure the rights of workers to security of tenure and just and humane conditions of work. These afore-captioned statutes sanction illegal measures used by employers to discriminate employees who refuse to get inoculated.

Employers are in a slippery slope trying to formulate a policy that shall ensure the safety of its employees while at the same time uphold the rights of those who refuse inoculation. Fortunately, the law does not leave the employers without remedy. Employers may avail Articles 284 and 286 under the Labor Code of the Philippines¹² which provides that:

***Article 284. Disease as ground for termination** - An employer may terminate the services of an employee who has been found to be suffering from any disease and whose continued employment is prohibited by law or is prejudicial to his health as well as the health of his co-employees: Provided, That he is paid separation pay equivalent to at least one month salary or to one-half month salary for every year of service, whichever is greater, a fraction of at least six months being considered as one whole year.*

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***Article 286. When employment not deemed terminated** - The bonafide suspension of the operation of a business or undertaking for a period not exceeding six months... In all such cases, the employer shall not reinstate the employee to his former position without loss of seniority rights if he indicates his desire to resume his work not later than one month from the resumption of operations of his employer...*

Remarkably, based on the above provisions of law, the employers are not left without remedy. They can either terminate the employee or put the same under floating status. Nonetheless, before an employee can avail of the same, there are certain qualifications or circumstances that needs to be categorically satisfied.

As stated under Article 284, termination can be effected by the employer against the employee if it can be proven that the latter has contacted the virus. In that case, the employer should prove the same using medical measures like a swab test. The qualification that the disease be prejudicial to his health and to co-employees is undoubtedly possessed by the contagious nature of the virus. However, in such termination, the employer is enjoined to compensate the employee as indicated in the law.

Verily, a lot of businesses closed, either temporarily or permanently, due to the pandemic. Corollary thereto, under Article 286, the Labor Code permits employers to temporarily suspend the work of an employee by reason of temporary cessation of its business or operation. Provided, that said *bona fide* suspension does not exceed a

¹¹ Labor Code of the Philippines, (1974), Article 3, Presidential Decree No. 442.

¹² Labor Code of the Philippines, (1974), Articles 284 & 286, Presidential Decree No. 442.

period of six (6) months. Evidently, employers experience financial losses due to the pandemic. It would not be illogical to presume that they may not be able to pay its employees' salaries due to the economic loss they suffered.

To encapsulate, the mentioned Labor Advisories clearly establish the voluntary and discretionary nature of the employees' vaccination. However, it should be noted that the same only applies to the private sectors, and does not include those in the public sectors. Further, such prohibition is only made possible due to the absence of a law that actually stipulates mandatory inoculation.

Although, assuming for the sake of argument that a law be enacted by Congress which compels employees to undergo mandatory inoculation such law is proper as it is consistent with the police power of the State. The government has repeatedly expressed its intentions of aiming for Herd immunity to address the current pandemic. Clearly, the more people that gets inoculated, less people will get infected. It is in accordance with *Salus populi est suprema lex*, the welfare of the people is the supreme law.

The focus of the discussion revolved around the difficulties an employer may face in relation to the prohibition on "No Work, No Vaccine" policy. However, as aptly discussed, there are certain legal measures that the employers may resort to. It is only a matter of what circumstances are availing of them towards the employees.

Existence of vaccines and health and safety protocols alone cannot instantaneously transform an office into a COVID-free workplace; more so a COVID-free community. The answer is within the law, employers need to urge and encourage its employees. Adopt measures that tend to educate their employees regarding vaccination. A lot of employees are indeed hesitant to get inoculated due to misinformation, i.e. possible side effects. The role of the employers is to help their employees understand that getting vaccinated is part of the solution. By doing so, employers not only ensure the safety of their employees but also ensure efficient operation of its business.

In fine, Government agencies are formed for a reason, to efficiently address specific sectors of the community. DOLE has certainly done such. The issuances strike the balance to protect the laborers' rights while at the same time do not prejudice that of the employers. The standards are definitely set for how other agencies should address this pandemic. ■

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